

BASIC LEGAL AND JUDICIAL ETHICS (BLJE)

Comprehensive Guide to Canons, Statutory Mandates, and Plain-Language Definitions

PART I: LEGAL ETHICS — CODE OF PROFESSIONAL RESPONSIBILITY AND ACCOUNTABILITY (CPRA)

Promulgated under A.M. No. 22-04-05-SC (Effective May 29, 2023), governing the conduct, ethical responsibilities, and professional accountability of all lawyers admitted to the Philippine Bar.

Canon I: Independence

Core Legal Mandate: A lawyer shall maintain professional independence at all times, free from improper influence, extraneous pressure, political interference, commercial control, or self-interest.

Practical Meaning: *"Stand your ground." Never let money, politics, personal friendships, or outside forces dictate your legal advice or trial strategy. A lawyer's ultimate loyalty is to the Constitution, the rule of law, and the administration of justice.*

Canon II: Propriety

Core Legal Mandate: A lawyer shall act with decency, dignity, honor, and professional respect in all professional, public, and private dealings, including all forms of online and social media communication.

Practical Meaning: *"Act with honor and class everywhere." A lawyer represents the legal profession 24/7. Maintain honesty, decorum, and courtesy in court, in public interactions, and on social media platforms. The CPRA strictly prohibits vulgarity, harassment, spreading unverified legal gossip, and engaging in romantic or sexual relations with current clients.*

Canon III: Fidelity

Core Legal Mandate: A lawyer shall observe absolute loyalty, undivided fidelity, sacred confidentiality, diligent preservation of client property and funds, and strict avoidance of conflicting interests.

Practical Meaning: *"Be completely loyal to your client." Guard client secrets permanently even after the lawyer-client relationship terminates. Never represent opposing sides in the same or related disputes without informed written consent, and never commingle client trust money with personal operating funds.*

Canon IV: Competence and Diligence

Core Legal Mandate: A lawyer shall provide proficient, timely, thoroughly prepared, and skilled legal service, while actively maintaining continuous legal education and embracing modern legal technologies.

Practical Meaning: *"Do your job well, proficiently, and on time." Master the law and jurisprudence governing your cases, attend court hearings punctually and prepared, avoid unnecessary procedural delays, and keep clients regularly updated on significant case developments.*

Canon V: Equality

Core Legal Mandate: A lawyer shall adhere to non-discrimination principles and actively promote equal access to justice for all persons, regardless of gender, race, religious belief, socioeconomic status, or disability.

Practical Meaning: *"Treat everyone fairly and with equal dignity." Do not discriminate against clients or litigants. Actively support and participate in legal aid programs, pro bono advocacy, and representation for the poor, marginalized, and underprivileged.*

Canon VI: Accountability

Core Legal Mandate: A lawyer is an officer of the court subject to moral responsibility and strict disciplinary jurisdiction for any violation of ethical duties, oath, or professional standards.

Practical Meaning: *"Own your actions." Lawyers who commit fraud, gross misconduct, ethical violations, or breach of trust are held directly accountable by the Supreme Court and Integrated Bar of the Philippines, facing sanctions ranging from reprimand, fine, and suspension, to permanent disbarment.*

PART II: JUDICIAL ETHICS — NEW CODE OF JUDICIAL CONDUCT (NCJC)

Promulgated under A.M. No. 03-05-01-SC (incorporating the international Bangalore Principles of Judicial Conduct), establishing the universal moral and legal standards governing all Judges and Justices across the Philippine Judiciary.

Canon 1: Independence

Core Legal Mandate: Judicial independence is a pre-requisite to the rule of law. A judge shall exercise judicial power independently on the basis of facts and law, without regard to executive directives, legislative interests, partisan politics, or public pressure.

Practical Meaning: *"Decide without fear or favor." Judges must evaluate evidence and statutes objectively. They must never yield to executive officials, politicians, media sensationalism, public clamor, or personal acquaintances.*

Canon 2: Integrity

Core Legal Mandate: Integrity is essential not only to the proper discharge of the judicial office, but also to personal conduct. A judge shall ensure that his or her conduct is above reproach in the view of a reasonable observer.

Practical Meaning: *"Be clean, honest, and untouchable." A judge's character and daily life must be spotless. Never solicit or accept gifts, bribes, or favors, and never engage in deceitful or fraudulent conduct in public or private life.*

Canon 3: Impartiality

Core Legal Mandate: Impartiality applies not only to the decision itself but also to the entire trial process. A judge shall perform judicial duties with complete neutrality, fairness, and objectivity, free from bias or prejudice.

Practical Meaning: *"Act as a fair and neutral referee." Never favor any party, prosecutor, or defense counsel. Inhibit and recuse from hearing cases where a judge has a personal interest, prior involvement, or close familial relation with a litigant or lawyer.*

Canon 4: Propriety

Core Legal Mandate: Propriety and the appearance of propriety are essential to the performance of all judicial activities. A judge shall avoid impropriety and the appearance of impropriety in both judicial and extra-judicial conduct.

Practical Meaning: *"Avoid looking shady or compromised." Live modestly and circumspectly. Avoid socializing closely or dining privately with practicing lawyers who have active cases pending before your court sala.*

Canon 5: Equality

Core Legal Mandate: Ensuring equality of treatment to all before the courts is essential to the due performance of the judicial office. A judge shall be aware of and understand diversity in society and treat everyone with equal dignity.

Practical Meaning: *"Respect everyone in your courtroom." Treat rich and poor litigants, prominent counsel and young attorneys, victims and accused with equal patience, neutrality, courtesy, and fairness without condescension or bias.*

Canon 6: Competence and Diligence

Core Legal Mandate: Competence and diligence are prerequisites to the due performance of judicial office. A judge shall maintain professional competence, manage courtroom dockets efficiently, and resolve cases within the reglementary periods prescribed by the Constitution and law.

Practical Meaning: *"Know the law and do not delay justice." Continuously master statutory amendments and Supreme Court jurisprudence, properly supervise court staff, and render clear, well-reasoned decisions within constitutional deadlines.*

PART III: COURT PERSONNEL ETHICS — CODE OF CONDUCT FOR COURT PERSONNEL (CCCP)

Promulgated under A.M. No. 03-06-13-SC, establishing strict ethical guidelines and public accountability standards for all Clerks of Court, Branch Clerks, Process Servers, Stenographers, and court administrative staff.

Canon I: Fidelity to Duty

Core Legal Mandate: Court personnel shall dedicate themselves to the honest, faithful, and diligent performance of their public duties, placing public interest above personal convenience or private financial gain.

Practical Meaning: *"Serve the court and the public honestly." Never solicit or accept tips, facilitation fees, or bribes from litigants. Refrain from fixing cases or acting as middlemen for law firms.*

Canon II: Confidentiality

Core Legal Mandate: Court personnel shall maintain strict confidentiality concerning all official information, draft decisions, internal memoranda, case raffle results, and judicial deliberations acquired during their service.

Practical Meaning: *"Keep court records and secrets locked." Never leak draft orders, unsigned decisions, or confidential case records to litigants, journalists, or third parties before official promulgation.*

Canon III: Conflict of Interest

Core Legal Mandate: Court personnel shall not participate in any business transactions, private employment, or financial investments that conflict with or compromise their official duties and court responsibilities.

Practical Meaning: *"No shady side deals or commercial conflicts." Do not recommend private law practitioners to litigants, and do not enter into commercial dealings with individuals who have pending matters before the court.*

Canon IV: Performance of Duties

Core Legal Mandate: Court personnel shall perform their official duties promptly, courteously, efficiently, without discrimination, and in strict compliance with prescribed procedural guidelines and work schedules.

Practical Meaning: *"Be prompt, hardworking, and polite." Arrive at the court on time, assist the public professionally without red tape or extortion, and execute court processes diligently.*

PART IV: HISTORICAL COMPARATIVE REFERENCE — THE 1988 CODE OF PROFESSIONAL RESPONSIBILITY (CPR)

The foundational 1988 Code of Professional Responsibility (Canons 1 to 22), organized into four major chapters reflecting the fourfold duty of a lawyer. Essential for comparative study, bar examination historical doctrines, and jurisprudential analysis.

Chapter I: The Lawyer and Society (Canons 1 to 6)

Scope and Core Principles: Covers the lawyer's fundamental duties to uphold the Constitution, obey the laws of the land, promote respect for law and legal processes, make legal services available to all persons regardless of means, provide accurate and non-misleading information regarding legal services, and participate in continuous legal education and law reform.

Practical Meaning: *Lawyers must be law-abiding citizens and social leaders who champion justice, avoid illegal schemes, assist indigent litigants with pro bono service, and refrain from self-laudatory commercial advertisements.*

Chapter II: The Lawyer and the Legal Profession (Canons 7 to 9)

Scope and Core Principles: Covers the lawyer's duties to uphold the integrity, nobility, and dignity of the legal profession at all times, treat fellow members of the Bar with courtesy, candor, and fairness, and assist in preventing the unauthorized practice of law by non-lawyers or suspended practitioners.

Practical Meaning: *Maintain the highest moral standards, never malign or deceive fellow lawyers, refrain from poaching clients, and never allow non-lawyers to practice law under your name.*

Chapter III: The Lawyer and the Courts (Canons 10 to 13)

Scope and Core Principles: Covers the lawyer's duties of honesty, candor, and fairness to the courts, observing procedural rules, avoiding deceit or misquotation of statutes/records, assisting in the speedy and efficient administration of justice (avoiding forum shopping and frivolous appeals), observing respect and deference toward judicial officers, and refraining from acts or public statements that exert improper influence or prejudice pending court proceedings.

Practical Meaning: *Never lie to a judge, never misquote facts or laws, avoid delaying tactics, show respect to the bench, and never claim private influence over the court.*

Chapter IV: The Lawyer and the Client (Canons 14 to 22)

Scope and Core Principles: Covers the availability of legal service, undivided loyalty and fidelity to client interests, absolute confidentiality of privileged communications, candor in legal advice, charging reasonable and transparent attorney's fees, accounting for and preserving client trust funds and properties, and observing ethical procedures when withdrawing from legal representation.

Practical Meaning: *Once engaged, give your best effort to your client, keep their secrets inviolate, never represent conflicting parties, handle client money with strict accounting, charge ethical fees, and never abandon a client without justifiable cause and court approval.*